

In cases where the Agency is aware of a breach of personal data, it will conduct supervisory proceedings and determine all circumstances of the specific case (for example, it will ascertain how the incident occurred, whether the data controller has taken appropriate technical and organizational measures to minimize the risk of the breach, and similar). Depending on the circumstances of each individual case, and if the responsibility of the data controller is established, the Agency will impose an appropriate corrective measure (such as an official warning, restriction, or prohibition of processing), the strictest of which is an administrative monetary fine.

In accordance with the provisions of the General Data Protection Regulation, in the event of a personal data breach that is likely to result in a high risk to the rights and freedoms of individuals, the data controller must notify the data subject of the breach without undue delay. However, in certain situations, the data controller will not be obliged to notify the data subject (notification to the data subject is not mandatory if any of the conditions set out in Article 34(3) of the General Data Protection Regulation are met).

Notwithstanding the above, in the event of a suspicion of a breach of your personal data (for example, unauthorized disclosure of a large number of personal data of citizens), you have the right to request from the data controller, if they have processed your data, information on whether your personal data is included in the incident. Likewise, you have the right to request from the data controller, who processes your personal data, access to your personal data and information regarding the processing of your personal data (for example, which personal data is being processed, for what purpose, with whom personal data is shared – recipients or categories of recipients of personal data, and similar).

The data controller must provide a response as soon as possible, and no later than within 30 days. Namely, in accordance with the General Data Protection Regulation, the data controller is obliged to provide you with the requested information and grant you access to your personal data if you request it. If the data controller does not comply with your request, you can contact the Agency for Personal Data Protection with a request for the determination of a rights violation <https://azop.hr/zahtjev-za-utvrdivanje-povrede-prava/>.

Below is a summarized overview of all rights guaranteed to data subjects by the General Data Protection Regulation:

1. Transparency: Providing information when collecting personal data when the data controller must, among other information, inform the data subject of their identity and contact details, the purposes of processing, and the legal basis for processing the data, recipients, transfer to third countries, retention period, the possibility of withdrawing consent, etc.;
2. Access to data: To obtain from the data controller confirmation of whether personal data relating to them is being processed and, if such personal data is being processed, access to personal data and information, among other things, about the processed personal data, the purpose of processing, retention period, transfer to third countries, etc.;
3. Right to rectification/completion: The data subject has the right to request the rectification of inaccurate personal data concerning them, and taking into account the purposes of processing, the data subject has the right to complete incomplete personal data, including by providing a supplementary statement;
4. Erasure ("right to be forgotten"): The data subject has the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller has the obligation to erase personal data without undue delay if, among other things, the personal data is no longer necessary in relation to the purposes of processing, the data subject has withdrawn consent for processing, the personal data has been unlawfully processed, etc. This right has limitations, so for example, a politician cannot request the erasure of information about themselves provided in the context of their political activities;
5. Right to restriction of processing: The data subject has the right to obtain restriction of processing if they contest the accuracy of the personal data, if the processing is unlawful and the data subject

opposes the erasure of the data, if the data must be retained for the establishment or defense of legal claims, if the data subject has lodged an objection to the processing of personal data;

6. Right to data portability: The data subject has the right to receive their personal data, which they have previously provided to the data controller, in a structured, commonly used, and machine-readable format and has the right to transmit those data to another data controller without hindrance from the data controller to whom the personal data has been provided, if the processing is carried out by automated means and is based on consent or a contract;

7. Right to object: The data subject has the right to object to the processing of personal data if it is based on a task carried out in the public interest, on the exercise of official authority vested in the data controller, or on legitimate interests of the data controller (including profiling); in this case, the data controller must no longer process the personal data of the data subject unless they demonstrate that their legitimate grounds for processing override the interests of the data subject and for the establishment of legal claims. Also, if the data subject objects to processing for direct marketing purposes, personal data must no longer be processed for such purposes;

8. Right to object to automated individual decision-making (profiling): The data subject has the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning them or similarly significantly affects them, unless such a decision is necessary for entering into or performance of a contract between the data subject and the data controller, is authorized by EU law or national law that provides for appropriate measures to safeguard the rights and freedoms and legitimate interests of the data subject, or is based on the explicit consent of the data subject.

More about rights can be found [here](#).